

United States District Court
for the Eastern District of Pennsylvania

U. S. District Judge John Milton Young

Policies and Procedures:
General Matters, Civil Cases, and Criminal Cases

GENERAL CHAMBERS AND COURTROOM MATTERS

Judge Young expects all counsel, and all parties they represent, to maintain the highest ethical standards at all times, and to strictly adhere to the opportunities, requirements, limitations, and deadlines set forth herein.

A. Correspondence with the Court

1. Counsel may write to Judge Young to request an unopposed extension of time and for unopposed requests pertaining to scheduling. However, Judge Young does not permit correspondence in lieu of opposed extension requests, contested discovery or substantive motions, or other disputed substantive matters which should be made of record via motion practice.

Correspondence may be e-mailed to Judge Young at Chambers_Young@paed.uscourts.gov.

2. Judge Young does not accept carbon copies of letters to opposing counsel.

3. Judge Young does not permit *ex parte* communication with the Court, written or otherwise.

4. Counsel are advised to submit current telephone and fax numbers to the Clerk's Office.

B. Communication with Law Clerks

Judge Younge generally does not permit counsel to directly communicate with law clerks. If a law clerk contacts counsel, it is at Judge Younge's direction. Usually, communication with Chambers shall occur via Judge Younge's Deputy, Ms. Dedra Brannan, at 267-299-7361, or via e-mail to Chambers_Younge@paed.uscourts.gov.

C. Video and Telephonic Conferences

Judge Younge uses video and telephonic conferences for scheduling changes, case management conferences, and similar matters. He also holds conference calls on discovery and other motions only as necessary. All counsel of record will be notified via e-mail in advance of the conference on how to connect remotely, and if it will be held telephonically or through use of video conference technology.

D. Oral Arguments and Evidentiary Hearings

Judge Younge does not set aside specific days or times for oral arguments or evidentiary hearings. Judge Younge will hear oral argument on a motion if he believes argument will assist him in deciding the motion. Arguments and hearings are scheduled on an *ad hoc* basis.

E. *Pro Hac Vice* Admissions

Judge Younge expects applications for *pro hac vice* admissions to be submitted in writing using the forms found on the Court's website at www.paed.uscourts.gov. He requires the attorney seeking such admission to (1) submit the signed affidavit or certification stating that he or she is a member in good standing of the bar of another jurisdiction.

F. Thorough Review of Filings

In order to avoid confusion, when counsel receives an electronic notification of a court order filed in a case, counsel is directed to open the order on the docket and review the contents of the order. Occasionally the docket's description of an order is inaccurate; counsel are responsible for making themselves aware of the actual content of every docket entry.

G. Punctuality and Civility

Judge Younger expects counsel to be punctual for all conferences, hearings, and trials. Judge Younger also expects counsel at all times to be civil to one another as well as to all parties, witnesses, and court personnel – whether in front of a jury or the Court.

H. Communication with Opposing Counsel

In general, Judge Younger expects counsel to bring matters, including those that arise during trial, to his attention only after they have been discussed with opposing counsel.

I. Cases Involving Out-of-Town Parties or Witnesses

Judge Younger has no special policy for matters involving out-of-town attorneys, parties, or witnesses. Counsel are free to raise any issues they deem necessary.

J. Examination of Witnesses Out of Sequence

Judge Younger is willing to take witnesses out of turn for their convenience, particularly when there is no objection by opposing counsel.

K. Videotaped Testimony

Counsel must discuss in advance of trial all objections to the presentation of videotaped testimony to resolve all conflicts. If counsel cannot resolve their disagreements, they should present any outstanding disagreements at least three weeks prior to trial (or trial pool ready date) by providing a transcript of the testimony with the challenged question and answer highlighted,

and a list setting forth each objection by page and line numbers and the basis for the objection. The videotape must be edited prior to trial to eliminate pauses and speed-ups so there are no interruptions.

L. Hearing and Trial Dates

1. The Court's calendar is generally set well in advance. Parties and counsel rely on assigned hearing and trial dates and Judge Younge is reluctant to reschedule set dates without good cause. If counsel becomes aware of a professional or personal conflict that may affect any significant scheduled event (including trial), they should immediately notify Judge Younge and opposing counsel.

2. Judge Younge generally sets a firm trial date for all matters. On the day of trial, Court promptly convenes at 9:30 a.m. and may sit until 5:00 p.m. or later. Dependent on juror transportation concerns, Judge Younge adjusts the schedule for subsequent trial days as necessary.

3. Counsel may contact Chambers the day prior to any hearing or trial to ascertain the assigned courtroom.

M. *Voir Dire*

Judge Younge's practice in criminal matters is to personally conduct the *voir dire*. However, in civil matters Counsel will usually conduct *voir dire* with minimal oversight from the Judge and his court deputy. Counsel are free to submit proposed (by a date set in this Court's pre-trial order) and supplemental *voir dire* (on the trial date) to Judge Younge. Should the need for follow-up questioning arise, Judge Younge may permit counsel to either do so themselves or submit follow-up questions for Judge Younge to ask.

N. Courtroom Procedure

1. Unless counsel have secured the Court's permission, Judge Younge expects counsel to stand when addressing the Court, the jury, or when examining witnesses. Counsel may stand where they choose, except that they may not crowd the witness or the jury.

2. Counsel may approach a witness with the permission of the Court. If counsel needs to approach the witness many times, Judge Younge may instruct the attorney that he or she need not continue to ask. Nonetheless, once the attorney has accomplished his or her reason for approaching the witness (however many times), he or she should return to the place from which he or she is questioning.

3. Judge Younge does not permit speaking objections in front of a jury. Counsel should give the basis for the objection in a word or phrase (*e.g.*, "hearsay").

4. Judge Younge does not allow "continuing objections"; counsel must state every objection for the record.

5. If counsel wishes to have a sidebar to argue on an objection, the Court will usually grant the request as long as the numbers of sidebars remains reasonable. Counsel are strongly encouraged to bring evidentiary questions to the attention of the Court outside the presence of the jury.

6. All counsel are reminded that re-direct is still direct examination, and not cross.

7. Although Judge Younge does not have a strict policy concerning examination beyond re-direct and re-cross, additional direct and cross examination will be allowed only upon request and at the Court's direction. However, "beyond the scope" and "asked and answered" will be strictly enforced.

8. Counsel has the responsibility to advise their witnesses that no witness should talk to any jury member at any time.

9. Judge Younge does not permit more than one attorney for a party to examine the same witness.

10. Judge Younge does not have a specific practice as to reading stipulations, pleadings, or discovery materials into the record. If counsel request the Court to read such, the written material must be prepared and submitted in advance of trial; any objection to the same must be raised prior to trial.

11. Judge Younge allows jurors to take notes.

12. Judge Younge will always have a clerk in the courtroom during a jury trial who will give the jurors any exhibits or other items that counsel requests be given to them. Counsel should never approach the jury to distribute exhibits unless permitted by Judge Younge.

13. Judge Younge considers a jury trial a formal affair and asks all counsel to act accordingly. Extraneous clothes, exhibits, briefcases or food/containers should not be left at counsel table when the jury is in the box.

14. Opposing counsel should not engage in extended conversations with each other in front of a jury without the Court's permission. The Court will allow counsel to have a private conversation if it is requested and efficient. However, lawyers absolutely should never argue with either opposing counsel or the Court in front of the jury.

O. Exhibits

Counsel must mark and exchange exhibits before commencement of a hearing or trial. Counsel should provide Judge Younge with two (2) copies of each exhibit and a schedule which briefly describes each exhibit. The first copy of the exhibits shall be provided three weeks prior to trial or trial pool ready date. A second copy shall be provided to this Court on the first day of trial or jury selection. Exhibits shall be taped and submitted in binders for ease of use by the Court.

Generally, exhibits will be admitted into evidence at the close of all evidence and prior to jury deliberations. Counsel should review the exhibits in advance so that agreed upon exhibits can be admitted quickly and disputed exhibits ruled upon at the conclusion of the case. When the number of exhibits in a case is large, Judge Younge strongly prefers to reach advance agreement as to the admission of as many exhibits as possible.

P. Opening and Closing Statements

While Judge Younge is flexible with regard to time limits on opening statements and summations, he does not allow open-ended presentations. Judge Younge usually will discuss the time needed with counsel in advance.

Counsel should be prepared to begin closing arguments immediately following the close of all evidence.

Q. Directed Verdict Motions

Judge Younge permits motions for a directed verdict outside the hearing of the jury.

R. Jury Deliberations

1. Written Jury Instructions

Judge Younge has standard instructions that he reads to the jury in all cases. However, Counsel are also expected to submit proposed jury instructions. Counsel are expected to meet and discuss proposed jury instructions for the purpose of submitting agreed-upon jury instructions and verdict forms. Counsel are expected to cooperate in the preparation of joint proposed instructions. Submitting a proposed point for charge does not constitute a waiver of objections. Counsel are instructed to work on proposed instructions regardless of counsel's position with respect to a point's applicability. If the Court sustains an objection to an instruction, it will not be submitted

to the jury. Objections to jointly submitted points will be discussed and ruled upon at the charging conference.

Counsel should submit their proposed jury instructions to the Court prior to the start of trial. After the close of evidence and prior to the beginning of closing arguments, Judge Younge will conduct a charging conference where he will go over each requested jury instruction. Counsel must place objections to jury charges on the record as Judge Younge rules on each request.

2. Exhibits in the Jury Room

Judge Younge will evaluate requests from the jury for particular exhibits on a case-by-case basis. Counsel will always be contacted prior to a decision on any such requests.

3. Availability of Counsel During Jury Deliberations

Counsel must be available in case questions arise from the jury during its deliberations. Judge Younge prefers counsel to be within 15 minutes distance of the courthouse during jury deliberations.

4. The Verdict Form and Special Interrogatories

In most civil cases, Judge Younge submits written interrogatories to the jury. In criminal cases, Judge Younge submits a verdict form to the jury with interrogatories as necessary. Copies are provided to jurors.

5. Polling the Jury

The Court will poll the jury if counsel so requests.

6. Interviewing the Jury

After a verdict has been recorded and the jury has been discharged, counsel may request to interview jurors. The jurors will be told that they are permitted to talk to counsel if they desire, but they need not do so. Counsel shall respect the jurors' desire not to speak to them.

CIVIL CASES

A. Pre-trial Procedure

1. Pre-trial Conference

Judge Younger may schedule a Fed. R. Civ. Proc. 16 conference to occur via telephone, video conference, or in Chambers. Judge Younger requires the parties to commence discovery immediately upon receipt of the Order scheduling the Rule 16 conference, and he expects the parties to conduct substantial discovery before the Rule 16 conference.

The Court's procedures rely upon the good faith of counsel and diligent compliance with Fed. R. Civ. Proc. 26(f). A Rule 26(f) meeting shall take place as soon as possible, and at least ten days prior to the Rule 16 conference. Without exception, counsel must, at least five business days prior to the Rule 16 conference, file with the Clerk of Court a completed report of their Rule 26(f) meeting.

2. Rule 16 Conference

At the Rule 16 conference, counsel are expected to discuss jurisdictional defects; the possibility of amicable settlement (including by referral for settlement discussions facilitated by a U.S. Magistrate Judge); alternative dispute resolution; time limitations for joining parties and amending pleadings, if necessary; scheduling for discovery deadlines, expert reports, motion practice, pre-trial memoranda, and future pre-trial conferences; scheduling a trial date; and any other appropriate matter. In addition, Judge Younger usually inquires whether the parties would be amenable to having their entire matter transferred to the jurisdiction of a U.S. Magistrate Judge pursuant to 28 U.S.C. § 636(c) and Fed. R. Civ. Proc. 73. Parties are expected to have conferred with each other about of these items prior to the conference (especially as to settlement and transfer to the jurisdiction of a U.S. Magistrate Judge).

Judge Younger usually enters a comprehensive scheduling order following the Rule 16 conference, which sets firm dates for the completion of discovery, the exchange of expert reports, and the filing of dispositive motions. Only after all discovery has been completed and all dispositive motions have been filed, will the case be placed in a trial pool or will be scheduled for a trial date certain.

3. Continuances and Extensions

Since trial dates are set in advance, Judge Younger is extremely reluctant to grant continuances – especially if the attorneys have not been diligent in moving the case forward. However, the Court will consider motions for extension of discovery deadlines upon showing of good cause.

4. Motion Practice

Except as set forth herein, motion practice will be conducted in accordance with Local Civil Rule 7.1. If the motion or the exhibits to the motion are voluminous, counsel *may* be contacted by Chambers to request a courtesy copy. The Court's courtesy copy shall be clearly marked, tabbed, and bound in a 3-ring binder or other binding method that allows the exhibit book to open and lay flat on an even surface. If counsel are directed to submit a courtesy copy, please deliver to Chambers via U.S. mail or hand delivery.

5. Reply and Sur-Reply Briefs

Reply briefs and sur-reply briefs, addressing only issues raised in the brief in opposition and not repeating arguments in briefs that were previously filed by the movant, may be filed within seven days of service of the opponent's brief in opposition/reply and shall be limited to ten pages.

6. Proposed Orders

Judge Younger requires a proposed order to be filed along with every motion and response. Proposed orders, although only a proposal, should nonetheless be titled “Order” and should not contain an attorney’s name or address. If meant to ultimately be filed under seal, please include “File Under Seal” in the caption.

7. Optical Recognition (Search) Function

Counsel are encouraged to post searchable versions of their briefs to ECF. If counsel posts a scanned copy of a physical brief, that brief should, if possible, be save in a digital format using Optical Character Recognition software.

B. Discovery Matters

1. Length of Discovery Period

The length of time permitted for discovery depends on the nature of each case. Judge Younger generally permits 3-6 months of discovery, except for more complex litigation.

2. Discovery Disputes

When a discovery dispute arises, counsel are strongly urged to settle it amongst themselves. However, if, after making a good faith effort, counsel are unable to resolve a disputed issue, counsel for the aggrieved party shall file with the Court a motion in conformity with Local Civil Rule 26.1(b), with a proposed order, and a brief not to exceed ten pages. After a response, also limited to ten pages, is filed, the Court will either: (1) issue a ruling; (2) hold a teleconference or hearing; (3) refer the dispute to a U.S. Magistrate Judge for a determination; or (4) order additional briefing. The Court normally rules promptly on discovery motions.

As a reminder, all discovery motions must contain the certification required under Local Civil Rule 26.1(f). Lack of civility between counsel during discovery and depositions will not be tolerated.

3. Confidentiality Agreements

Judge Younger will approve a confidentiality order if the order includes a detailed statement demonstrating that good cause exists. All such orders must contain the following language or language substantially similar: “The Court retains the right to allow disclosure of any subject covered by this stipulation or to modify this stipulation at any time in the interest of justice.”

4. Expert Witnesses

Parties should identify expert witnesses and engage in expert discovery pursuant to the scheduling order entered in the particular case. Failure to do so may bar the use of the expert’s testimony at trial.

C. Settlement

Judge Younger usually refers settlement conferences to a U.S. Magistrate Judge. However, if warranted, Judge Younger may refer a matter to a settlement master with the parties bearing the cost thereof.

D. Summary Judgment Motions

All summary judgment motions and oppositions to such motions must contain a recitation of facts with complete and accurate citation to the record. To this end, Judge Younger requires the parties to file separate statements of material facts (*i.e.*, not simply a factual narration section of a brief), as follows:

1. Any motion summary judgment shall include a separate Statement of Undisputed Material Facts which sets forth, in numbered paragraphs, the material facts that the moving party contends are undisputed and entitle the movant to judgment as a matter of law. Only those facts which bear on dispositive material issues shall be included in the Statement of Undisputed Material Facts.

2. The papers opposing a motion for summary judgment shall include a separate Statement of Undisputed and/or Disputed Material Facts that responds to the numbered paragraphs set forth in the moving party's Statement of Undisputed Material Facts, either admitting those facts are undisputed, or contending they are disputed and, as such, are genuine issues to be tried. The responding party may also set forth, in separate numbered paragraphs, any Additional Disputed Material Facts which the respondent contends preclude summary judgment.

3. If a responding party sets forth additional disputed material facts, the moving party shall, within 7 business days, file a response either admitting those facts are disputed, or contending they are undisputed and, as such, are not genuine issues to be tried.

4. Without exception, all facts set forth shall be deemed admitted unless addressed by the opposing party as set forth herein

5. The Court will not consider any description of a fact that is not supported by citation to the record. Statements of Material Facts in support of or in opposition to a motion for summary judgment must include specific and not general references to the parts of the record that support each of the statements, such as the title of or numbered reference to a document, the name of a deponent and the page(s) of the deponent's deposition, or the identity of an affidavit or declaration and the specific paragraph relied upon. Pinpoint citations are required.

Summary judgment motion practice that fails to follow these procedures to the letter will be stricken.

E. Pre-trial Submissions

Unless otherwise specified, Judge Younge requires the parties to submit the following by a date set by the Court, which is normally approximately three weeks prior to the trial date:

1. Jointly-proposed *voir dire* questions;
2. Jointly-proposed brief statement of the case;

3. Jointly-proposed jury instructions;
4. Jointly-proposed verdict sheet;
5. Motions *in limine*; and
6. Final pretrial memoranda pursuant to Local Civil Rule 16.1(c).

The above listed documents must be submitted in Microsoft Word format; .pdf format is not acceptable. All documents must be sent via e-mail: Chambers_Younge@paed.uscourts.gov.

a. The proposed points for charge and special jury interrogatories shall be prepared and submitted jointly. Counsel are expected to work together to achieve agreement on as many items as possible before submission to Judge Younge. Proposed points for charge should be accompanied by appropriate citations of legal authority – including use of the Model Civil Jury Instructions for the Third Circuit, where applicable (see <http://www.paed.uscourts.gov>, “Third Circuit Model Jury Instructions” bullet).

b. Each proposed point for charge shall be numbered and on a separate sheet of paper.

c. Where counsel cannot agree on a particular point for charge or interrogatory, the joint submissions shall provide the alternative version proposed by each party and the rationale for each.

d. Where one party proposed a point for charge or interrogatory and the other party objects to the proposal in its entirety (*i.e.*, wishes nothing be used, as opposed to an alternative version), the joint submission shall note such and include the objecting party’s rationale.

e. Supplemental points for charge will be permitted during and at the conclusion of trial.

F. Motions *in Limine*

As noted above, motions *in limine* usually are due three weeks before trial. A response to any motion *in limine* is due within five business days of the filing of the motion. Judge Younge will usually rule on outstanding motions *in limine* prior to opening statements; however, in some

instances, rulings on motions may be held until the witness has been called to testify or the evidence is being presented to the jury.

G. Final Pre-trial Conference

1. Judge Younge will hold a final pre-trial conference prior to trial. At the final pre-trial conference, the case will be assigned a trial date certain or placed into a trial pool. The parties should be prepared to once again discuss the possibility of settlement or alternative dispute resolution in lieu of trial. In preparation for trial, Judge Younge expects counsel to communicate with each other on a number of matters, including exhibit designations, objections to exhibits, use of expert depositions, and stipulations of fact.

2. The parties shall file a pretrial memorandum in accordance with Local Rule of Civil Procedure 16.1(c) seven days prior to the final pretrial conference.

3. At the final pre-trial conference, a date will be set (usually three weeks prior to trial) at which point the parties will be required to provide the Court with one copy of each exhibit and two copies of a schedule of exhibits which shall describe each exhibit. At trial, the parties shall provide the Court with an additional copy of each exhibit. Exhibits shall be arranged and tabbed in a binder.

4. At the final pre-trial conference, a date will be set (usually three weeks prior to trial) when the Parties will be expected to submit their objections to witnesses and exhibits, and to opposing counsel's objections. It is expected that counsel have discussed and have attempted to resolve all objections to exhibits and testimony prior to submitting those objections to this Court, leaving only those objections the parties could not resolve.

5. Any party intending to use depositions, written or video, at trial must notify all other Parties in writing one month prior to the trial date established at the final pretrial conference. Written

notification must set forth the page and line numbers of the challenged testimony and a clear statement for the basis of the objection. The objecting party must provide the Court with a copy of the deposition transcript with the challenged testimony highlight.

H. Injunctions

1. Scheduling and Expedited Discovery

When a temporary restraining order (“TRO”) is requested, Judge Younger will schedule a conference as soon as counsel have appeared and it is possible to properly consider the request, unless the Court can resolve the TRO on the papers. Judge Younger requires all counsel to be present unless the urgency of circumstances precludes notice to opposing counsel. Judge Younger rarely grants *ex parte* temporary restraining orders.

2. Hearings

Prior to any formal hearings, Judge Younger may hold a conference with counsel. Judge Younger schedules preliminary and permanent injunctions hearings as soon as practicable and combines the two hearings if appropriate. Judge Younger usually permits expedited discovery when preliminary injunctive relief is requested.

3. Proposed Findings of Fact and Conclusions of Law

Judge Younger requires the submission of proposed findings of fact and conclusions of law in injunction cases, in accordance with Fed. R. Civ. P. 52(a).

I. Trial Briefs

Counsel may submit trial briefs when they are likely to be helpful to the Court.

J. Proposed Findings of Fact and Conclusions of Law

In a non-jury trial, the parties shall file a stipulation of uncontested facts. Each party shall submit proposed findings of fact and conclusions of law.

CRIMINAL CASES

A. Motions Practice and Pre-trial Hearings

The Parties must file any pre-trial motions, including *Starks* and *Daubert* motions or motions to suppress evidence, on or before the deadline established by the scheduling order entered by the Court, and under no circumstances later than six (6) weeks prior to the commencement of trial. The opposing Party must respond to any pre-trial motion no later than seven days after the motion is filed.

Judge Younge will usually set a tentative date for a hearing on pretrial motions at the time that he enters a scheduling order. In the unusual event that Judge Younge does not establish a motion hearing date, counsel may then submit a request for oral argument on *Starks* and *Daubert* motions or motions to suppress. Any hearing on *Starks/Daubert* and/or Suppression Motions will be held at least thirty (30) days prior to trial. Counsel will be expected to file findings of fact and conclusions of law no later than ten (10) days after the motion hearing unless otherwise directed by the Court.

B. Continuances of Trial

Any request for a continuance must be filed no later than fourteen (14) days in advance of the scheduled trial date. Requests for a continuance must be filed as a motion stating the reasons for the request. Any such motion must be accompanied by a proposed order consistent with the requirements of the Speedy Trial Act, 18 U.S.C. § 3161. The order shall include a proposed finding that explains in reasonable detail why the ends of justice served by granting the requested continuance outweigh the best interest of the public and the defendant in a speedy trial. Any motion for a continuance of trial date must be accompanied by a speedy trial waiver. The speedy trial waiver form can be found as an attachment to the first trial listing. For a government

continuance request, where the defendant will not sign the waiver, a hearing will be held. Continuance requests by letter in criminal cases are not permitted.

C. Pre-trial Submissions

1. At least three weeks before the case is listed for trial and/or in accordance with the scheduling order entered by the Court, the Parties shall **jointly** prepare and submit to the Court proposed points for charge and proposed jury verdict form in accordance with the instructions below. Documents must be submitted via e-mail to Chambers_Younge@paed.uscourts.gov in Microsoft Word format - .pdf format is not acceptable. Proposed points for charge must be accompanied by appropriate citations of legal authority. If a proposed point for charge is a model jury instruction, the submission shall state whether the model jury instruction is unchanged or modified. If counsel modifies a model jury instruction, additions shall be underlined and deletions shall be placed in brackets. In addition:
 - a) Counsel are **expected** to work together to achieve agreement on as many items as possible before submission to Judge Younge.
 - b) Each proposed point for charge shall be numbered and on a separate sheet of paper, with citation to the applicable authority.
 - c) Where counsel cannot agree on a particular point for charge or on the verdict form, the joint submissions shall provide the alternative version proposed by each party and the rationale and legal authority for each.
 - d) Where one party proposed a point for charge or element of the jury verdict form and the other party objects to the proposal in its entirety (*i.e.*, wishes nothing be used, as opposed to an alternative version), the joint submission shall note such and include the

objecting party's rationale and authority. Supplemental points for charge will be permitted during and at the conclusion of trial.

2. At least three weeks prior to the trial date and/or in accordance with the scheduling order entered by the Court, the government must file a trial memorandum setting forth the essential elements of the offenses, the facts which it intends to present, the identity of each witness it intends to call, a statement of the substance of each witness's testimony and any legal issues. Any defense response to the government's trial memorandum shall be filed within seven (7) days thereafter.

3. If the government expects to introduce Rule 404(b) evidence relating to other crimes, wrongs, or acts, it must file a motion on or before the deadline set by the Court in its scheduling order (or at least six (6) weeks before trial if the Court does not enter a scheduling order). The motion shall include a brief summary of the proposed evidence, identifying the purpose for which the evidence will be offered and explain how the evidence fits into a chain of logical inferences connecting it to a proper purpose, no link of which is an improper propensity inference. *See United States v. Davis*, 726 F.3d 434, 442 (3d Cir. 2013). The motion shall also include a proposed jury instruction to precede the introduction of such evidence. Any defense response is due within five (5) business days thereafter.

D. Pre-trial Conferences

Judge Younge may schedule a pre-trial conference in a criminal case – typically five (5) days prior to trial. Any issues relating to *voir dire*, motions *in limine*, jury instructions, and jury verdict forms will be addressed at that time.

E. Guilty Plea Memoranda

Judge Younge requires the government to submit a guilty plea memorandum and a copy of any plea agreement no later than ten (10) days prior to the guilty plea date. A guilty plea

memorandum shall include the elements of each offense to which the defendant is pleading guilty and legal citations for such elements; the maximum (and mandatory minimum, if any) statutory penalties for each offense; the terms of any plea agreement; and the factual basis for the plea. The guilty plea agreement and memorandum must state whether the plea is a general plea of guilty, a conditional plea, or a plea of nolo contendere. The guilty plea agreement also must disclose to the defendant and the Court whether the plea is entered pursuant to Federal Rule of Criminal Procedure 11(c)(1)(A), (B) or (C), relating to the obligation of the government regarding other charges under subsection (A), a non-binding sentencing recommendation under subsection (B), or a binding sentencing recommendation under subsection (C). In addition, the plea agreement **must** inform the defendant and remind the Court, pursuant to Rule 11(c)(3)(B), that the defendant has no right to withdraw the plea if the Court does not follow the recommendation or request if the plea is entered under 11(c)(1)(B).

In addition to filing a guilty plea memorandum with the Clerk of Court – and unless the matter is sealed – counsel shall simultaneously send a digital copy of the same in Microsoft Word format directly to Judge Younge’s Deputy, Ms. Dedra Brannan. Counsel’s failure to strictly adhere to this protocol will likely result in sanctions.

F. Sentencing

A sentencing date shall be selected at the time the Court accepts a guilty plea or there is a conviction at trial. Requests for continuance from sentencing are discouraged, and sentencing will be continued for good cause only.

To avoid delay in sentencing, all objections to the Presentence Investigation Report (PSR) must be sent to the probation officer in advance of sentencing. In no event shall counsel raise objections for the first time in a sentencing memorandum.

Sentencing motions (including motions for downward departure or variance) and supporting memoranda must be filed at least seven (7) days prior to the scheduled sentencing date, and any response thereto must be filed at least seven days prior to the scheduled sentencing date.

Sentencing memoranda (exclusive of motions), by both the government and the defense must be filed simultaneously no later than seven (7) days before the scheduled sentencing date, and any response thereto must be filed at least five (5) days prior to the scheduled sentencing date. If a defendant is responsible for restitution, the government must submit sufficient information in its sentencing memorandum to enable the Court to determine entitlement, the name and the address of each victim, the amount of loss for each victim, and documentary support for each amount. If liability for restitution is joint and several, the government shall itemize the restitution amount for which each defendant is responsible.

In addition to filing any such motions and/or sentencing memoranda with the Clerk of Court – and unless the matter is sealed – counsel shall simultaneously send a digital copy of same in Microsoft Word format directly to Judge Younge’s Deputy, Ms. Dedra Brannan. Counsel’s failure to strictly adhere to this protocol will likely result in sanctions.

G. Violation of Supervised Release/Probation Hearing

Counsel shall carefully review the probation officer’s petition for revocation prior to any violation hearing. Judge Younge expects counsel to have a sound understanding of the alleged violation of supervision, as well as in-depth knowledge of the defendant’s criminal history.

H. Sealing of Judicial Documents

Public policy favors transparency in judicial proceedings, and the public has a right to access public documents. However, in certain circumstances, the interests of the parties involved in a criminal matter may require that certain documents and proceedings be sealed. The Court will

approve of sealing orders for good cause shown. Please notify Judge Younge's Deputy, Ms. Dedra Brannan, whenever any judicial documents are to be impounded, or whenever any court proceedings must be sealed.

/s/ John Milton Younge

Judge John Milton Younge

(Revised: 08/04/2026)